

Instructions for Summons – Civil Action, or Civil Case

ND Legal Self Help Center Staff and Court employees can't help you fill out forms, or create documents for you. If you're unsure how to proceed, consult a lawyer.

ND Legal Self Help Forms aren't official forms. Judges and courts aren't required to accept them. There's no guarantee Center forms will be accepted. Use at your own risk.

Don't include this instruction sheet when you serve or file the completed form.

The "District Court Civil" Section of the [ND Legal Self Help Center webpage](#) has additional information and resources.

A Summons directs the Defendant to answer the Complaint within a certain amount of time. The Summons notifies the Defendant that a default judgment will be taken against them if the Defendant doesn't answer.

- ☐ Fill in the name of the North Dakota County where the Plaintiff intends to file the civil action, or case.
- ☐ Fill in the name of the Judicial District where the Plaintiff intends to file the case. (The County is within the Judicial District.) County and Judicial District information and maps are available at ndcourts.gov/court-locations.
- ☐ Leave the case number blank unless a Plaintiff on the Plaintiff line. There can be more than one Plaintiff.
- ☐ Fill in the Defendant's full, legal name on the Defendant line. There can be more than one Defendant.
- ☐ Sign and date the Summons.
- ☐ A copy of the Complaint must be served with the Summons.

****Disclaimer: The North Dakota Legal Self Help Center provides resources to people who represent themselves in civil matters in the North Dakota state courts. The information provided by the Center isn't intended for legal advice but only a general guide to the civil court process. The Center can't guarantee that all judges and courts will accept forms available through the Legal Self Help Center. The Center isn't responsible for any consequences that may result from the information provided. The information can't replace the advice of competent legal counsel licensed in the state. Use at your own risk.****

State of North Dakota

In District Court

County of _____

_____ Judicial District

Plaintiff,
vs

Defendant.

Case No. _____

Summons

The State of North Dakota to the Above Named Defendant:

1. **You are hereby summoned** and required to appear and defend against the Complaint in this action by serving upon the undersigned an Answer or other proper response within twenty-one (21) days after the service of this Summons and Complaint upon you, exclusive of the day of service. A copy of the Complaint is served upon you with this Summons.
2. If you fail to do so, judgment by default will be taken against you for the relief demanded in the Complaint.

Dated _____.

_____, Plaintiff
Signature of Plaintiff

Typed or Printed Name of Plaintiff

Address

City State Zip Code

Telephone Number: _____

Email Address: _____